

		liability insurance through Farmers Insurance; that the address on Defendant's driver's license shows an address at: 2907 Braeholm Pl., Hermosa Beach, CA 90254; that two attempts to personally serve Defendant were made at this Hermosa Beach address on January 9, 2026, and January 11, 2026, which were not successful; that one attempt was made to personally serve Defendant at an address at: 521 ½ Acacia Ave., Corona Del Mar, CA 92625 on January 16, 2026, that was unsuccessful; and that one attempt was made to personally serve Defendant at an address at: 1845 Sabrina Terrace, Corona Del Mar, CA 92625 on January 20, 2026. (Declaration of Alexis Galindo, ¶¶ 3-4, 6-9, Exs. A-C.) Plaintiff's counsel also provides that notice of attempted service has been provided to Defendant's insurance carrier, Farmers Insurance, and that in performing a search of public records, no other current addresses have appeared. (Id., ¶¶ 5-6.) The foregoing attempts do not sufficiently demonstrate that Defendant cannot with reasonable diligence be served in another manner. Plaintiff shows that they made only two attempts to personally serve Defendant at the last known address for Defendant in Hermosa Beach, and Plaintiff appears to have made only one search of Lexis/Nexis Public Records to learn Defendant's whereabouts. Although some effort has been made, these efforts do not reflect the steps a reasonable person who truly desired to give notice of the action would have taken under the circumstances. Plaintiff's Motion for Order of Publication of Summons is DENIED, without prejudice. The Case Management Conference is continued to November 19, 2026 at 1:30 p.m. <i>Plaintiff to give notice.</i>
106	Mangum vs. Defense International Corporation, 24-01371228	Plaintiff Armani Mangum ("Plaintiff") moves pursuant to Code of Civil Procedure sections 2023.010 and 2023.030 for an order imposing terminating sanctions against Defendants Defense International and Chaz McKinney. Specifically, Plaintiff asks the Court to strike Defendants' answer and enter default judgment against Defendants. Alternatively, Plaintiff asks the Court to strike Defendants' affirmative defenses and impose issues and/or evidence

sanctions precluding Defendants from supporting or opposing designated claims or defenses and/or introducing designated matters in evidence.

Despite proper service by mail and email, the motion is unopposed.

Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).)

Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).)

Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).)

A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12; *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions

sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions.”].)

Terminating sanctions are inappropriate if the “imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery.” (*Thomas v. Luong* (1986) 187 Cal.App.3d 76, 81.) Even so, “where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12.) Under such circumstances, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1105.)

Here, the Court finds that Defendants have repeatedly failed to participate in the discovery process and abide by the Court’s orders regarding the same. Plaintiff has been attempting to obtain discovery from Defendants since March of 2025, which is now well over a year ago. Defendants have yet to (1) provide the outstanding and court-ordered discovery responses, (2) pay court-ordered monetary sanctions, and (3) meaningfully participate in the case.

Defendants’ counsel moved to be relieved as counsel and the Court granted this request on July 17, 2025. Now, over a year later, Defendants remain without counsel. Defendant Defense International is a corporation and must be represented by counsel. (*CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1150 “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”].)

Defendants have repeatedly failed to meaningfully participate in this case for well over a year.

Defendants also did not oppose this motion and therefore proffered no evidence establishing otherwise. Based on the non-opposition, the Court may “deem [defendant] to have abandoned the issues” or “claims” addressed in the

		moving papers. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Plaintiff's arguments presented in the motion. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>DuPont Merck Pharmaceutical Co. v. Superior Court</i> (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) ["By failing to argue the contrary, plaintiffs concede this issue."]; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and <i>Westside Center Associates v. Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) Given the above, the Court finds that the requested terminating sanctions are appropriate under the circumstances. The Motion is GRANTED. Defendants' answer (ROA 19) is DEEMED STRICKEN. Plaintiff may seek entry of default forthwith and may prepare an appropriate default judgment prove-up package. <i>Plaintiff to give notice.</i>
107	Parker vs. Le, 24-01447835	<u>Motion to Consolidate</u> Defendants Nhi Xuan Le and Linda Nguyen (together, "Defendants") move to consolidate the two related matters, Parker v. Le, et al., Case No. 2024-01447835 (the "7835 Action"), and Parker v. Le, et al., Case No. 2025-01463080 (the "3080 Action"). For the following reasons, Defendants' motion is GRANTED. Defendants did not strictly comply with rule 3.350 because the notice of motion was not filed in the related 3080 Action, and the motion does not contain both captions. Although this constitutes a procedural defect, Plaintiff is the only party to both actions other than the moving parties, and Plaintiff filed an opposition (albeit, belatedly), in which she does not raise any objections to the procedural defects. Thus, no resulting prejudice has been